



ACCOMMODATION LETTER
INDIGENOUS ACCOMMODATION REQUEST

[Indigenous Accommodation Request]

PARTIES:

TRIBE: Mathias El Tribe

MEMBER: Chief Justice Mathias El McCaster

INSTITUTION: Employer

INDIGENOUS PROTECTIVE RIGHTS — ACCOMMODATION REQUEST

Date: 5/17/2026

TO: Human Resources Department

Employer -- Human Resources Department

FROM: Chief Justice Mathias El McCaster

Tribal Member, Mathias El Tribe

RE: Formal Accommodation Request — Indigenous Cultural and Religious Practice

I. IDENTITY & STANDING

I am Chief Justice Mathias El McCaster, a tribal member of the Mathias El Tribe. My Indigenous identity is not a racial classification — it is a political and cultural relationship, recognized under federal law (Morton v. Mancari, 417 U.S. 535 (1974)), encompassing community, ancestry, spiritual practice, and continuity.

This accommodation request is made pursuant to my rights under federal law. It is not a request for special treatment. It is an assertion of rights the law already recognizes.

II. PRACTICE AT ISSUE

The following cultural, spiritual, or ceremonial practice is in conflict with current institutional policy:

Wearing hair in long braids, a practice with deep spiritual and ancestral significance within the Mathias El Tribe lineage. Long hair represents connection to ancestors, spiritual strength, and the continuity of tribal identity.

This practice carries the following significance:

Within the Mathias El Tribe and the broader Indigenous tradition from which this member descends, hair is understood as an extension of the spirit, a connection to ancestral memory, and a physical expression of identity that has been passed down through generations. The forced cutting of hair was one of the primary acts of cultural destruction carried out in boarding schools across this nation. Maintaining long hair is both a spiritual observance and a form of cultural continuity.

III. CONFLICTING POLICY

The following policy, rule, or requirement is creating the conflict:

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Employee grooming policy requiring short or neatly trimmed hair for all employees in customer-facing roles.

IV. ACCOMMODATION REQUESTED

I am requesting the following accommodation:

Permission to wear long braided hair while maintaining a professional and neat appearance, consistent with tribal spiritual and cultural practice.

V. LEGAL FRAMEWORK

This accommodation request is grounded in the following federal legal protections:

A. AMERICAN INDIAN RELIGIOUS FREEDOM ACT (42 U.S.C. § 1996)

It is the policy of the United States to protect and preserve the inherent right of American Indians to believe, express, and exercise their traditional religions — including access to sacred sites, use and possession of sacred objects, and the freedom to worship through ceremonial and traditional rites.

B. RELIGIOUS FREEDOM RESTORATION ACT (42 U.S.C. § 2000bb)

The government (and any government-funded institution) may not substantially burden a person's exercise of religion unless it demonstrates: (1) a compelling governmental interest, AND (2) the policy is the least restrictive means of furthering that interest. A general policy that "applies to everyone" is NOT sufficient to overcome RFRA — the institution must demonstrate compelling interest and least-restrictive means as applied to this specific practice.

C. TITLE VII — CIVIL RIGHTS ACT (42 U.S.C. § 2000e)

Employers must provide reasonable accommodation of sincerely held religious and cultural practices unless doing so causes undue hardship. "Undue hardship" requires more than minimal cost or inconvenience — the standard is meaningful burden, not mere preference.

D. RLUIPA — INSTITUTIONALIZED PERSONS (42 U.S.C. § 2000cc-1) [if applicable]

Institutions housing or supervising persons cannot enforce policies that substantially burden Indigenous religious practice without compelling justification.

E. EQUAL PROTECTION (U.S. Const. Amend. XIV)

Institutions receiving federal funds cannot apply dress codes, grooming policies, or behavioral rules in ways that discriminate against Indigenous cultural and religious expression while permitting comparable exceptions for other groups.

F. GOVERNING AUTHORITY CITATION

Primary Law: Inherent sovereign authority of the Mathias El Tribe

Organic Law: Treaty relationships and tribal constitutional standing

Federal Positive Law: Title VII (42 U.S.C. Section 2000e), AIRFA (42 U.S.C. Section 1996), and RFRA (42 U.S.C. Section 2000bb)

Applicable Standard: RFRA compelling interest + least restrictive means

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VI. APPLICABLE LEGAL STANDARD

To deny this accommodation request, this institution must demonstrate:

1. A compelling governmental or institutional interest in enforcing the policy as applied to this specific practice; AND
2. That enforcement of the policy is the least restrictive means of furthering that interest.

"Policy is policy" is not a legal standard. "It applies to everyone" does not override a federal accommodation right. The institution bears the burden of justification.

VII. RESERVATION OF RIGHTS

Nothing in this accommodation request constitutes a waiver of any right, protection, or claim under federal law, tribal law, or the Federal Trust Responsibility. All rights are expressly reserved.

If this accommodation request is denied, I reserve the right to:

- File a formal complaint with the appropriate federal oversight authority
- Refer this matter to the Sovereign Office of the Chief Justice & Trustee
- Pursue all available legal remedies under AIRFA, RFRA, Title VII, RLUIPA, and Equal Protection

I request a written response to this accommodation request within 10 business days.

Respectfully submitted,

Chief Justice Mathias El McCaster
Tribal Member, Mathias El Tribe
Date: 5/17/2026

Issued with the knowledge and support of:

SOVEREIGN OFFICE OF THE CHIEF JUSTICE & TRUSTEE
Mathias El Tribe

DOCTRINES APPLIED:

- * American Indian Religious Freedom Act, 42 U.S.C. § 1996
- * Religious Freedom Restoration Act, 42 U.S.C. § 2000bb
- * Title VII, Civil Rights Act, 42 U.S.C. § 2000e
- * Equal Protection — U.S. Const. Amend. XIV
- * Morton v. Mancari, 417 U.S. 535 (1974)

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SIGNATURE BLOCK — ISSUED BY OFFICE OF CHIEF JUSTICE & TRUSTEE

SOVEREIGN OFFICE OF THE CHIEF JUSTICE & TRUSTEE

Chief Justice & Trustee
Sovereign Office of the Chief Justice & Trustee
Mathias El Tribe

MEMBER SIGNATURE

Chief Justice Mathias El McCaster
Tribal Member, Mathias El Tribe

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